

24SMCV00010 24SMCV00010

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Case Number: 24SMCV00010 Hearing Date: July 21, 2026 Dept: M

CASE NAME: Glowa v. MDR

L&M Apartments, LLC, et al.

CASE NO.: 24SMCV00010

MOTION: Motion

to Compel Independent Medical Examination

HEARING DATE: 7/21/2026

Legal

Standard

Any party may obtain discovery by means of mental or physical examination of a party to the action if the mental or physical condition of that party is in controversy in the action. (CCP § 2032.020.) The demand must specify the date, time, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the physician who will perform the exam. (CCP § 2032.220(c).) Any demand shall be scheduled for a date that is at least 30 days after service of the demand, but the court may shorten this time upon motion. (CCP § 2032.220(d).) Within 20 days after service of the demand the party to whom the demand is directed shall respond to the demand by a written statement that the party will comply as stated, comply as modified, or refuse. (CCP § 2032.230(a).)

Leave for a party to conduct a mental examination may be granted upon good cause shown. (CCP §§ 2032.310, 2032.320.)

The motion must specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity, and specialty, if any, of the person conducting the examination. (CCP § 2032.310(b).) The motion must be supported by a meet and confer declaration. (Id.) Further, the party's mental state must be in controversy in the action. (See *Acuna v. Regents of University of California* (1997) 56 Cal.App.4th 639, 653 [trial courts have the discretion to order a mental examination where the plaintiff seeks damages for on-going emotional distress].) "[A] party who chooses to allege that he has mental and emotional difficulties can hardly deny his mental state is in controversy." (*Vinson v. Superior Court* (1987) 43 Cal.3d 833, 839-842.)

Specific tests must be specified to ensure that "the court has considered any objections to the tests and provides the examiner clear parameters for the examination." (*Carpenter v. Superior Court* (2006) 141 Cal.App.4th 249, 263 [invalidating order requiring plaintiff to submit to "standardized written psychological tests" to "test emotional and cognitive functioning"].)

If a party stipulates that no claim is being made for mental and emotional distress over and above that usually associated with the physical injuries claimed and that no expert testimony will be presented regarding the mental and emotional distress, then the court shall not order a mental examination of a person unless there is a showing of exceptional circumstances. (CCP § 2032.320(b) –(c).) Finally, a separate statement is required to compel a "medical examination over objection." (CRC Rule 3.1345(a)(6).)

ANALYSIS

Defendants MDR L&M Apartments, LLC and Common Management Co. move to compel Plaintiff Anna Glowa's independent mental examination ("IME") pursuant to CCP section 2031.310. Specifically, Defendant demanded a neuropsychological examination with a licensed clinical neuropsychologist, Dr. Giselle Leal, at 175 SW 7th Street, Suite 2417, Miami, FL, 33130, on August 5, 2026, at 9 a.m. (Ullrich Decl., Ex. 3.) This is less than 20 miles from Plaintiff's residence at 1133 102nd St #806, Bay Harbor, FL, 33154. (Ullrich Decl., Ex. 1, FROG no. 2.5.)

Defendants demonstrate good cause for the noticed mental examination. Plaintiff's mental condition is at issue.

This is a slip-and-fall action. Plaintiff alleges that Defendants own the subject premises where Plaintiff was a resident. Plaintiff alleges she slipped and fell in the stairwell of the premises due to “fluids, liquids, water, urine and/or feces” in the stairwell. (Compl. ¶¶ 6, 14, 28.) Plaintiff’s form interrogatory responses claim damages of “concussion, traumatic brain injury, bruising, blurred vision, nausea, vomiting, onset of migraines . . . brain fog, slowness of thought, emotional distress, difficulty coping with stress/emotional situation . . .” (Ullrich Decl. Ex. 1, FROG no. 6.2.) Plaintiff alleged ongoing migraines, post traumatic migraines, dizziness, brain fog, irritability, which were either daily or weekly. (Id., FROG no. 6.3.) Her prior treatment included DTI/MRI of the brain and a neurological examination. (Id., FROG no. 6.4.)

Defendant met and conferred with Plaintiff. (Ullrich Decl., ¶ 4, Ex. 2.) Plaintiff ultimately agreed to the August 5, 2026, defense medical examination. (Id.) Plaintiff did not return the signed DME notice and stipulation, nor did she reject it, despite emails reminding her counsel of it several times. (Id.)

Accordingly, the motion is GRANTED.

Plaintiff is ordered to appear at the examination as noticed.